

Cal.App.4th 492, 505.) “[I]f a party has been given notice of an action and has not been prevented from participating therein,” relief must be denied because “[h]e has had an opportunity to present his case to the court and to protect himself from mistake or from any fraud attempted by his adversary.” (*Kulchar v. Kulchar* (1969) 1 Cal.3d 467, 472.)

Defendant Mark Porcello filed the motion to set aside on 7.20.26. Defendant seeks to set aside the default on the basis of CCP 473(b) or equitable relief. Porcello was defaulted in this matter on 6.10.26. On 2.10.26, the court sustained a demurrer as to some of the causes of action for Plaintiff’s complaint, and following court’s order permitting Plaintiff 30 days to file an amended complaint, no amended complaint was submitted. After the expiration of the time, Defendant Porcello failed to file an answer. Defendant’s motion to set aside focuses on his prior participation in the case, to include filing the demurrer and a Motion to Dissolve the Operative Injunction. However, Defendant fails to give any basis for his failure to submit an answer, other than to state that Plaintiff did not alert Defendant that Plaintiff was not filing an amended complaint. Defendant references the court treating him as an active litigant, however, after entry of default, the court on 6.18.26 vacated the Motion to Dissolve as Defendant was no longer an active litigant. The declaration submitted by Porcello fails to show mistake, inadvertence, surprise or excusable neglect that warrants setting aside the default.

As to equitable relief, Defendant has not shown a satisfactory excuse for not presenting a defense, nor has Defendant shown any type of extrinsic fraud or mistake. Defendant’s reliance on Plaintiff litigating the Motion to Dissolve while also seeking a default is not persuasive. Nor is the court continuing the motion prior to the default being entered, grounds to grant the motion to set aside.

Motion to Set Aside Default DENIED.

Case Management Conference and OSC confirmed for 9.24.26.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2603169	CALIFORNIA LABOR COMMISSIONER, DIVISION OF LABOR STANDARDS ENFORCEMENT, DEPARTMENT OF INDUSTRIAL RELATIONS, STATE OF CALIFORNIA, ON BEHALF OF THE PEOPLE OF THE STATE OF CALIFORNIA VS LP FARM LABOR, LLC	HEARING RE: DEMURRER ON COMPLAINT FOR OTHER EMPLOYMENT (OVER \$35,000) OF CALIFORNIA LABOR COMMISSIONER, DIVISION OF LABOR STANDARDS ENFORCEMENT, DEPARTMENT OF INDUSTRIAL RELATIONS, STATE OF CALIFORNIA, ON BEHALF OF THE PEOPLE OF THE STATE OF CALIFORNIA BY LP FARM LABOR, LLC, ZAVALA FARM, LLC, LUIS ALBERTO ZAVALA, CHARIFE I. ZAVALA

Tentative Ruling: A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (CCP § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly alleged, and of any material facts of

which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

Statute of Limitations:

Under Labor Code § 98.7(c)(1):

If the Labor Commissioner determines a violation has occurred, the Labor Commissioner may issue a determination in accordance with this section or issue a citation in accordance with Section 98.74. If the Labor Commissioner issues a determination, the commissioner shall notify the complainant and respondent and direct the respondent to cease and desist from any violation and take any action deemed necessary to remedy the violation, including, where appropriate, rehiring or reinstatement, reimbursement of lost wages and interest thereon, payment of penalties, payment of reasonable attorney's fees associated with any hearing held by the Labor Commissioner in investigating the complaint, and the posting of notices to employees. If the respondent does not comply with the order within 30 days following notification of the Labor Commissioner's determination, the Labor Commissioner shall bring an action promptly in an appropriate court against the respondent. An action by the Labor Commissioner seeking injunctive relief, reimbursement of lost wages and interest thereon, payment of penalties, and any other appropriate relief, shall not accrue until a respondent fails to comply with the order for more than 30 days following notification of the commissioner's determination. The Labor Commissioner shall commence an action within three years of its accrual, regardless of whether the commissioner seeks penalties in the action.

The Complaint alleges that Plaintiff issued a determination letter to Defendants on 12/30/25, which contained a demand for remedies. (Complaint, ¶ 41.) Defendants have failed to comply with the Plaintiff's determination and demand for remedies. (Id. at ¶¶ 43-44.) This lawsuit was filed on 4/8/26, well within the three years set forth in Labor Code § 98.7(c)(1).

Defendants argue that the statute of limitations bars this claim because under Labor Code § 98.7(e), "the Labor Commissioner shall notify the complainant and respondent of the commissioner's determination under subdivision (c) or paragraph (1) of subdivision (d), not later than on year after the filing of the complaint." The Complaint alleges that on 7/11/17, Guiterrez filed the complaint with Plaintiff. (Complaint, ¶26.) The 12/30/25 determination by the Plaintiff is well over this one year time period. As such, this provision of Labor Code § 98.7 has not been complied with.

While Plaintiff failed to comply with this one year time period, this deadline is directory and did not take away Plaintiff's jurisdiction to render a determination. Typically, requirements regarding the time within which an act must be done by a government entity are directory rather than mandatory or jurisdiction, unless the statute clearly expresses otherwise. (*Edwards v. Steele* (1979) 25 Cal.3d 406, 410.) The "directory" or "mandatory"

designation denotes whether the failure to comply with a particular procedural step in a statute will or will not have the effect of invalidating the governmental action to which the procedural requirements relate. (*California Correctional Peace Officers Assn. v. State Personnel Bd.* (1995) 10 Cal.4th 1133, 1145.) “If the action is invalidated, the requirement will be termed ‘mandatory.’ If not, it is ‘directory’ only.” (*Ibid.*) A time limit is usually directory unless the Legislature clearly states a contrary intent. (*Id.*)

In determining whether a time limit is directory or mandatory, some courts look at whether there are penalties put in place for missing the applicable time period. (*Id.*) In Labor Code § 98.7, there are no penalties identified for missing the one year deadline in subdivision (e). As such, based on this test the deadline would be directory, not mandatory. The other test applied in these matters looks at whether imposing the deadline would defeat or promote the purpose of the statute. (*California Correctional Peace Officers Assn., supra*, 10 Cal.4th at 1145.) The purpose of Labor Code § 98.7, is to provide a mechanism by which employee’s complaints against their employers can be resolved. Part of the purpose of this statute is to provide a mechanism by which the Labor Commissioner could investigate these claims, make a determination, and attempt to resolve them before litigation. Making the one year time period mandatory would not promote this purpose.

Laches:

Defendants’ argument is that Plaintiff’s claims are barred by laches fails. Laches applies only to equitable actions. (*Connolly v. Trabue* (2012) 204 Cal.App.4th 1154, 1164.) Plaintiff’s claims are statutory in nature.

Both parties improperly submitted declarations in this matter to support the merits of their arguments in the moving and opposing papers. The role of a demurrer is to test the legal sufficiency of the complaint. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) In ruling on a demurrer, the court cannot consider the substance of declarations and other matters not subject to judicial notice. (*Ibid.*) As such, the Court cannot consider the evidence provided in these declarations when ruling on the demurrer.

Defendants’ Demurrer to the 1st, 2nd and 3rd Causes of Action OVERRULED.

Defendants to file an answer within 20 days.

Case Management Conference confirmed for 11.02.26.